The Supreme Court has explained the scope and effect of the doctrine of implied powers in the following way[33]:

"The doctrine of implied powers can be legitimately invoked when it is found that a duty has been imposed or a power conferred on an authority by a statute and it is further found that the duty cannot be discharged or the power cannot be exercised at all unless some auxiliary or incidental power is assumed to exist. In such a case, in the absence of an implied power the statute itself would become impossible of compliance. The impossibility in question must be a general nature as that the performance of duty or the exercise of power is rendered impossible in all cases. It really means that the statutory provision would become a dead-letter and cannot be enforced unless a subsidiary power is implied."

3. Application of the Doctrine

The Supreme Court has applied the doctrine of implied powers in a number of constitutional cases. The important, among them, are as follows:

In *Gopal Chandra Misra* case[34] (1978), the Supreme Court held that a judge of a State High Court has an implied power under the provisions of Article 217 to revoke his resignation even after his resignation letter has been received.

In *Rupa Ashok Hurra* case[35] (2002), the Supreme Court held that it has an implied power (i.e., inherent power) which enables it to reconsider its own judgements. It suggested that a curative petition can be filed for seeking reconsideration of a judgement that has become final after dismissal of a review petition under the provisions of Article 137. It said that a curative petition is allowed in order to cure a gross miscarriage of justice and to prevent abuse of its process.

In *Raja Ram Pal* case[36] (2007), the Supreme Court held that the Parliament has an implied power under the provisions of Article 105 to expel its members for its contempt.

In *Salil Sabhlok* case[37] (2013), the Supreme Court held that Article 316, which grants a State Governor the power to appoint the members of the State Public Service Commission (SPSC), also grants the implied power to lay down the procedures for such appointments.

4. Doctrine of Implied Prohibition

The doctrine of implied prohibition is the opposite of the doctrine of implied powers. This doctrine is based on the maxim that "express mention of one thing implies the exclusion of another".

The doctrine of implied prohibition is applied in USA and Australia. In these federal countries, only the powers of the Central Legislature are enumerated in the Constitution and the residuary powers have been left to the State Legislature. This means that there is an implied prohibition on the Central Legislature to make laws on the residuary subjects. However, this prohibition is not applicable to those encroachments (on the residuary powers of the State Legislature) which are incidental and ancillary to the proper execution of the express powers granted to the Central Legislature.

The doctrine of implied prohibition is not applicable in India. In the Indian Constitution, the powers of both the Central Legislature and the State Legislature have been separately enumerated the Parliament can legislate on the subjects enumerated in the Union List, Concurrent List and also on the residuary